

TUMUL LEGAL

FIRM PROFILE

TEL:
+675 78993998

POSTAL ADDRESS:
TUMUL LEGAL
PO Box 5856
Boroko,
National Capital District

PHYSICAL ADDRESS:
Level 2, Suite 3,
Waigani Haus, Section 31,
Allotment 5, Mokoraha
Road, Waigani, National
Capital District

EMAIL:
mek@tumullegal.com
mosesliu@tumullegal.com



CONTENT

01 ABOUT US	3
02 OUR MISSION	4
03 AREA OF EXPERTISE AND PRACTICE	4
04 THE TEAM	5 – 7
05 GENERAL LITIGATION/ ALTERNATE DISPUTE RESOLUTION	8
06 BANKING AND FINANCE LITIGATION	9
07 CORPORATE AND COMMERCIAL LAW	9
08 LABOUR AND EMPLOYMENT LAW	9
09 PROBATE, SUCCESSION AND TRUST	10
10 PROPERTY AND CONVEYANCING LAW	10



ABOUT US

Tumul Legal is a law firm that constitutes the Principal, an Associate, Legal clerk and an admin officer. The firm was established in August 2022. The firm currently has its office at Level 2, Suite 3, Waigani Haus, Section 31, Allotment 5, Mokoraha Road, Waigani, NCD.

One of the attributes of the firm includes its resolve to provide amicable, cost effective and solution-oriented services in a timely manner to its clients.

We are an energetic, mission-orientated team that is eager to work together to achieve the best results for our client.



OUR MISSION

Our mission is to provide our clients with the highest quality legal services at a reasonable rate. We offer practical solutions to our clients and embrace and address our clients' needs by offering quality advice, to enable them to make informed decisions.

We are committed to excellence and our ability to find innovative solutions to the most complex legal problems faced by our clients.

AREAS OF EXPERTISE AND PRACTICE

Tumul Legal offer expertise in the following areas of law in Papua New Guinea:

- General Litigation/Alternate Dispute Resolution
- Banking and Finance Litigation
- Corporate and Commercial Law
- Property and Conveyancing Law
- Administrative and Public Law
- Employment and Labour Law
- Probate, Succession and Trust
- Family Law
- Torts
- Contract Law
- Insurance Law



THE TEAM

Mek Tumul

Founder and Principal

Mek Tumul is the founder and principal of the firm and is a member of the PNG Law Society following his admission to the bar in 2013. He holds a Bachelors of Law Degree from the University of Papua New Guinea, graduating in 2012. He graduated dux of the Legal Training Institute (LTI) class of 2013 receiving the Chief Justice Award.

Prior to establishing the firm, Mek was a Senior Associate at the top tier international law firm Allens Linklaters (Allens). He was employed at Allens for over 9 years, leaving Allens to start this firm.

While at Allens Mek regularly appeared in the Supreme, National and District Courts of PNG, participated in court-annexed mediation and directly handled various matters covering civil law, criminal law, judicial review, constitution law, employment law, complex landowner compensation claims, defamation claims and contracts law matters. Mek has advised and advocated for top corporate clients including ExxonMobil PNG Limited, Puma Limited, Ok Tedi Mining Limited, Westpac Bank (PNG) Limited, Lihir Gold Limited, Steamships, Haliburton, Nambawan Super Limited, National Superannuation Fund Limited, Pacific MMI Insurance Limited and state agencies such as Central Bank of PNG and PNG Power Limited.

Some of these cases are reported in the Pacific Islands Legal Information Institute (PacLii) website, such as the following:

1. ***ExxonMobil PNG Limited v Au*** [2019] PGNC 483; N8759;
2. ***Steven Bagari & Others v Ok Tedi Mining Limited & Others*** [2019] PGNC 440; N8143;
3. ***Nambawan Super Limited v The State*** [2020] PGNC 380; N8625;
4. ***Marago Pate & Others v Esso Highlands Limited (now ExxonMobil PNG) & Others*** [2020] PGNC 78; N8277;
5. ***Bismark Maritime Ltd v Talisman Energy Niugini Limited*** [2018] PGSC 99; SC1769;



6. ***Pawa v Halliburton Overseas Limited*** [2020] PGNC 88; N8272;
7. ***Taru v Pacific MMI Insurance limited*** [2016] PGNC 122; N6305;
8. ***PNG Power Limited v Illus*** [2020] PGSC 89, SC2002;
9. ***National Superannuation Fund Limited v Yawenaik Holding Limited*** [2019] PGSC 10; SC1759;
10. ***Niugini Nominees Limited v Independent Public Business Corporation of PNG*** [2018] PGSC 32; SC1689;
11. ***Mal-Con Limited v ExxonMobil PNG Limited*** [2020] PGNC 219; N8489;
12. ***PNG Power Limited v Sarathy*** [2022] PGSC 28; SC2218;
13. ***Kotape v McConnell Dowell Construction PNG Limited and Esso Highlands Ltd*** [2019] PGNC 473; N8338.

Mek Tumul has experience in conveyancing matters, commercial matters, regulatory updates and the preparation and review of leases, employment contracts and contracts of sale. In the commercial law sphere, Mek has experience in incorporation of companies, business and associations, providing commercial advice to corporate clients and handling contentious commercial litigation matters.

Contact:

mek@tumullegal.com

+675 78993998



Moses H Liu

ASSOCIATE

Moses Harold Liu is an Associate with the firm and a member of the PNG law society. Moses obtained a College Diploma in pre-law and business studies from Bond University, Queensland in 2013. He graduated with a Bachelors of Law Degree from the University of Papua New Guinea in 2019 and was admitted to the bar in 2021 after completing his legal studies at LTI. Since then he has had civil and criminal litigation experience in the District and National Courts of PNG.

Moses is under the supervision of Mek Tumul and has been involved in researching areas of law, drafting court documents, undertaking searches at various offices and at the National Court Registry and he appears in court with Mek Tumul regularly for various matters.



CONTACT:

mosesliu@tumullegal.com

+675 79058748

GENERAL LITIGATION / ALTERNATIVE DISPUTE RESOLUTION

We deal with different forms of litigation that arise during the ordinary course of business where we need to file a proceeding on behalf of or defend any cases that are filed against our clients.

These may be disputes arising out of contractual breaches, leases, tenancies and licenses and other matters where a party may feel that they need to take action in court to enforce their claims. Depending on the parties' disposition, we try to settle disputes out of court and only resort to litigation as a final resort.

Our practice is focused on criminal defense, investigations and civil litigation. Mek Tumul has over 9 years of experience in handling matters in the National Court and dealing with appeals in the Supreme Court of PNG, the highest Court of the land.

Amongst the value adds that we provide to our clients include sharing strategy and opinions on proposed and ongoing litigation and a systemic structure on pre-trial preparation to minimize adjournments and hasten conclusion of our matters.

The Courts have recently taken the stance to preferably go down the path of dispute resolution through negotiation and mediation to avoid costly, lengthy and unproductive litigation processes. Our lawyers possess the requisite skills and experience to provide representation for our clients during arbitration or mediation.

Our areas of expertise include:

- Contract law
- Tort
- Employment law
- Administrative law and Judicial Review
- Land law
- Commercial law
- Property Law
- Probate, Succession and Trust;
- Family law
- Insurance law



BANKING & FINANCE LITIGATION

Mek Tumul has advised and litigated on behalf of a number of key organizations in the banking and finance sector, including the Bank of Papua New Guinea, ANZ Banking Group, Bank of South Pacific Limited and Westpac Bank (PNG) Limited, acting for them in both claims by and against them.

Mek Tumul's experience ranges over advisory work on general aspects of law related to financial institutions, and litigation work including loan recovery, liquidation proceedings, proceedings to take possession of a mortgaged property, summary eviction of defaulting mortgagor, enforcement of security, obtaining injunction orders and defending tortious claims.

CORPORATE AND COMMERCIAL LAW

Our firm has experience in the area of corporate governance, regulation and issues arising from transactions and commercial trade. We can provide advice on formation of companies/business names/associations, shareholder rights and general advice. Our focus is on understanding our clients' business needs in order to assist them in overcoming legal obstacles so that they can prosper. This area of law also includes:

- Business law
- Partnerships
- Company law
- Labour and Employment law

LABOUR AND EMPLOYMENT LAW

We provide advice to all stakeholders in this area of law. This includes advising employers on the regulatory framework for employing citizens and non-citizens, drafting employment contracts, providing litigation and mediation services.

We also advice and advocate for clients who intend to sue their former employers for unlawful termination.



PROBATE, SUCCESSION AND TRUSTS

Lawful succession to properties and assets of a demised person is vital. It ensures respect for the deceased person's wishes and maintains peace and harmony among families and friends during a difficult time. We provide services which include setting up Trusts, drafting Last Will and Testaments and applying for probate and letters of administration for people who pass on without leaving Wills behind.

PROPERTY AND CONVEYANCING LAW

Our lawyers are experienced in this area of law and can swiftly and confidently deliver to our clients. We advise on property acquisitions, divestments and litigation where necessary. In summary our practice in this area include:

- Sale and/or Purchase of Properties
- Drafting Contracts of Sale
- Mortgages and related financing documents
- Compliance with laws and regulations, including liaising with relevant Government agencies



Advocate
Passionate
Inspire
Consistency

TEL:
+675 78993998

POSTAL ADDRESS:
TUMUL LEGAL
PO Box 5856
BOROKO
National Capital District

PHYSICAL ADDRESS:
Level 2, Suite 3, Waigani Haus
Section 31, Allotment 5,
Mokoraha Place, Waigani
National Capital District

EMAIL:
mek@tumullegal.com
mosesliu@tumullegal.com

